

Amar Nath Vidya Ashram & Anr. v. State of U.P. & 3 Others

High Court of Judicature at Allahabad · Division Bench · 7 February 2025 · 2025:AHC:18184-DB · Writ - C No. 10023 of 2018 · **Writ disposed of; relegated to CGRF/Ombudsman under clause 7.10, to be decided preferably within three months**

HEADNOTE

A remaining technical billing dispute after the consumer has deposited the impugned demand — here, a multiplication-factor change from 1 to 4 following amalgamation of three connections into one, and a claim to bifurcate mixed commercial and staff-quarter (domestic) load on that connection — is for the Consumer Grievance Redressal Forum / Ombudsman under paragraph 7.10 of the U.P. Electricity Supply Code, 2005, not the writ court. The petitioners, challenging a demand notice dated 18.10.2017, were left free to file a complaint before that forum, to be considered and decided expeditiously, preferably within three months of filing a certified copy of the order with the complaint. The writ was disposed of subject to that liberty. The Court did not decide the quantum of the demand, the multiplication-factor change, or the mixed-use bifurcation.

FACTUAL SUMMARY

The petitioners, Amar Nath Vidya Ashram and another, challenged a demand notice dated 18 October 2017. The institution originally held three connections (S.C. Nos. 007641, 068315 and 047169). After an inspection they were directed to amalgamate those connections; a single connection was issued, but the multiplication factor was then changed from 1 to 4, producing a dispute over the amount payable. They also said the same connection supplied both the institution and staff quarters, mixing commercial and domestic use.

They were told to deposit the demanded sum first; they claimed they had paid it, including Rs 20 lakh on 5 and 6 March 2018 as stated at the 19 March 2018 listing, but that the licensee had not bifurcated the commercial and residential components. On 19 March 2018 the Court directed that if that deposit was made, the connection would not be disconnected till the next date.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Post-deposit technical billing dispute (MF change on amalgamation; mixed commercial/domestic load) belongs to the Clause 7.10 CGRF/Ombudsman

QUESTION

After the consumer has deposited the impugned demand, should the writ court decide a remaining technical billing dispute about a multiplication-factor change on amalgamation of connections and mixed commercial/domestic use, or is that for the Clause 7.10 CGRF/Ombudsman?

HOLDING

It is for the Clause 7.10 forum. After deposit of the amount claimed in the demand notice dated 18.10.2017, the remaining issue is a technical one best addressed by the Consumer Grievance Redressal Forum / Ombudsman under paragraph 7.10 of the U.P. Electricity Supply Code, 2005. The petitioner may file a complaint before that forum, which shall consider and decide it expeditiously, preferably within three months from the date a certified copy of the order is filed with the complaint. Subject to that, the writ petition stands disposed of. ¶ 7-9

FLAG Source PDF also contains listing orders of 19.3.2018 (interim non-disconnection if the stated Rs 20 lakh deposit was made), 13.3.2024, 22.4.2024 and 15.1.2025; the operative disposal is 7.2.2025.

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A remaining technical billing grievance after deposit of the demand (multiplication-factor change on amalgamation of three connections; mixed commercial/domestic load on

the single connection) is for the Clause 7.10 CGRF/Ombudsman in the first instance, not the writ court. Same cluster as SCJ-096, SCJ-197, SCJ-217. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS / QUANTUM OF THE DEMAND NOTICE DATED 18.10.2017, INCLUDING WHETHER THE MULTIPLICATION FACTOR WAS RIGHTLY CHANGED FROM 1 TO 4 AFTER AMALGAMATION

Left to the Clause 7.10 CGRF/Ombudsman; the Court expressed no opinion on the amount chargeable. ¶ 3, 7-8

NOT DECIDED — WHETHER THE SINGLE CONNECTION SHOULD BE BIFURCATED INTO COMMERCIAL AND RESIDENTIAL (STAFF-QUARTER) COMPONENTS

Raised as the remaining grievance after deposit; expressly treated as a technical issue for the CGRF/Ombudsman. ¶ 4-8

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.